

**17200SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Nancy L. Fineman
400 County Center, Redwood City
Department 4, Courtroom 4C

Tuesday June 30, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept4@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5104 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 624 8977 Password: 230279

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

2:00 PM

LINE 1

22-CIV-03482

BARULICH DUGONI AND SUTTMANN LAW GROUP, INC. VS. JESSIE HUANG

BARULICH DUGONI & SUTTMAN LAW GROUP, INC.
JESSIE HUANG

JULLIAN SEKONA

MOTION TO ENTER JUDGMENT

TENTATIVE RULING:

Petitioner Barulich Dugoni & Suttman Law Group, Inc.’s Motion to Enter Judgment is DENIED without prejudice.

No proof of service of the motion has been filed, and there is no indication Respondent Jessie Huang has been provided notice of the hearing as required. (See Code Civ. Proc., § 1005, subd. (a).) A “court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) Accordingly, the motion is denied.

Furthermore, the motion is essentially identical to the prior motion seeking to confirm an arbitration award denied on April 1, 2026. In denying that motion, the Court found that Huang had not been served with the petition as required by law. (Apr. 1, 2026 Order, ¶¶ 2–3.)

If the manner of service is provided for in the arbitration agreement, then a copy of the petition and notice of the hearing on the petition shall be served according to the agreement. (Code Civ. Proc., § 1290.4, subd. (a); see Bus. & Prof. Code, § 6203, subd. (b) [service of petition to confirm attorney–client fee arbitration award “shall be in the same manner as provided in Chapter 4 (commencing with Section 1285) of Title 9 of Part 3 of the Code of Civil Procedure”].) Here, there is no indication that the underlying arbitration agreement provided for manner of service. In such cases, the papers must be served (1) in the manner of a summons if service is to be made within California or (2) by registered or certified mail or personal service if service is to be made outside California. (*Id.*, at subd. (b).) Importantly, proof of service by registered or certified mail outside of California “shall be made by affidavit showing such mailing together with the return receipt of the United States Post Office bearing the signature of the person on whom service was made.” (*Id.*, at subd. (b)(2).) There is evidence of one attempt to serve the Petition by “certified mail delivery” three years ago, but the proof of service does not show the return receipt of the United States Post Office bearing Huang’s signature. (See Oct. 11, 2022 Proof of Service.)

Petitioner Barulich Dugoni & Suttman Law Group, Inc. has still not cured this jurisdictional defect, which is an additional and independent grounds for denial.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Petitioner Barulich Dugoni & Suttman Law Group, Inc. shall prepare, for the court’s signature, a

written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE 2

23-CIV-01887 CHARLES KING VS. ERIC STUART, ET AL.

CHARLES KING
ERIC STUART

PRO SE

PLAINTIFF'S MOTION TO CONTEST TENTATIVE RULING AND PROPOSED ORDER TO VACATE SANCTIONS

TENTATIVE RULING:

On June 2, 2026, the court heard the first of two motions to contest. The court noted that for the June 2, 2026 and this motion which was filed on March 30, 2026, there were no proofs of service. No proof of service has been filed since then.

California Rules of Court 3.1300 requires that “proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.” Without the proof of service being filed, there is no evidence that defendants have been properly served with the motion and the court lacks jurisdiction to hear the motion. “[P]roof of service fulfills the function of establishing that ‘procedures implementing the constitutional requirements of due process were followed giving assurance that service really has been made.’ (*West v. West* (1979) 92 Cal.App.3d 120, 124, 154 Cal.Rptr. 667.) Accordingly, when adequate proof of service is available, it is of no legal import that a party actually may not have received notice. (*Ibid.*) That being the case, the courts are very strict in applying the statutory standards for proof of service; failure to strictly comply with those standards deprives the court of jurisdiction to act. (*Ibid.*)” (*Oats v. Oats* (1983) 148 Cal.App.3d 416, 420.)

Thus, defendants do not have proper notice of the hearing and the court cannot consider the motions. (See *Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [court lacks jurisdiction to rule on a motion that has not been properly noticed].)

If the tentative ruling is not contested, it will become the order of the court without the need for a formal order.

2:00 PM

LINE 3

23-CIV-05931 AMANDA NUNEZ, ON BEHALF OF HERSELF AND ON BEHALF OF ALL PERSONS SIMILARLY
SITUATED VS UNIVERSITY HEALTHCARE ALLIANCE

AMANDA NUNEZ, ON BEHALF OF HERSELF AND ON BEHALF OF ALL
PERSONS SIMILARLY SITUATED
UNIVERSITY HEALTHCARE ALLIANCE

ANDREW G. RONAN

RACHEL WINTTERLE

MOTION FOR FINAL APPROVAL OF CLASS SETTLEMENT AND AWARD OF ATTORNEYS' FEES, COSTS AND SERVICE
AWARDS

TENTATIVE RULING:

The court rules on plaintiff's unopposed motion for final approval of class action settlement and award of attorneys' fees, service award and costs as follows:

The Court Grants Approval of the Settlement

In a written order dated February 19, 2026, the court granted preliminary approval to this class and PAGA (Private Attorney General Act) settlement. The action alleges wage and hour violations. The complaint in this action was a class action brought by Amanda Nunez who then amended her complaint to add a PAGA cause of action. Plaintiff Marlisha L. James had filed a class action complaint in Alameda County Superior Court. Based upon the stipulation of counsel, James joined this lawsuit as a plaintiff and a second amended complaint was filed and is the operative complaint.

The settlement is for \$1,950,000.00 with \$40,000 of that amount for the PAGA claims. According to the declaration of the claims administrator, Madley Nava of Apex Class Action, LLC (Apez), there are 1,573 participating class members who worked 125,877 work weeks. (Nava Decl., ¶¶ 6, 15.) The settlement will provide a payment of \$30,000.00 to the California Labor and Workforce Development Agency (LDWA) (i.e., 75% of the \$40,000.00 amount allocated to resolve the PAGA allegations). The remaining \$10,000.00 shall be distributed amongst Aggrieved Employees. The LDWA has not objected to the settlement. The highest individual payment to a class member is estimated at \$1,591.45, the average is \$744.76, and the lowest is \$9.31. (Nava Decl., ¶15.)

In ruling on settlements involving class and PAGA claims, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664 [“trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.”]; *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 [“ ‘The court has a fiduciary responsibility

as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement.’ ”].)

In reviewing the evidence presented and conducting its independent review, the court finds that all the conditions for final approval have been met. The court gives final approval to the settlement, including the allocation between the class and PAGA settlement. (Code of Civ. Proc., § 382; *Richmond v. Dart Industries* (1981) 29 Cal.3d 462, 470).

According to the declaration of Nava, on March 9, 2026, Apex received a class list and on March 23, 2026, Apex mailed the class notice to all 1,573 class members. (Nava Decl., ¶¶ 5-7.) Thirty-six notices were returned and remailed and there are five undelivered notices. (*Id.*, ¶¶ 8, 9.) There have been no written disputes, no objections and no requests for exclusion. (*Id.*, ¶¶ 10-14.)

The class is ascertainable in that the class members have already been identified by defendant and they received notice of the settlement.

There is a community of interest in that common questions of law and fact predominate involving whether defendant properly calculated employee compensation. For settlement purposes, this community of interest is sufficient. Plaintiffs/class representatives, Amanda Nunez’s and Marlisha L. James’s claims are typical of the class claims because they are alleged to have suffered the same injury as other class members. They adequately represent the class, as set forth in their declaration and in having experienced class counsel. The settlement avoids the risk of the uncertainty of litigation. The settlement is fair adequate and reasonable. The law favors settlement and the fact that the class might be able to obtain more from a trial must be balanced against the risk of not having a class certified, receiving less than the settlement, including a defense verdict, the time and money that it would take to take the case to trial and through a potential appeal, and the potential for a change in law. The court in granting preliminary approval discussed the risks and benefits of the settlement. The case was mediated with mediator, Tripper Ortman, and the fact that there were no objections or opt-outs out and the LDWA did not object strongly supports approval of the settlement. The court approves the settlement.

ATTORNEYS FEES

The court grants plaintiff’s counsel request of attorneys’ fees in the amount of one third of the gross settlement.

The court in reviewing the facts of this case finds that a one-third award is appropriate. (*Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503 (*Lafitte*) [“33 1/3 percent of the common fund is consistent with, and in the range of, awards in other class action lawsuits”]; *Chavez v. Netflix, supra*, 162 App. 4th 43, 66 fn. 11 [final fee award was 27.9% of the benefits].)

While a common fund fee is appropriate here, even a proper common fund-based fee award should be reviewed through a lodestar cross-check. (*Lafitte, supra*, 1 Cal.5th at p. 503.)

Plaintiff's counsel shows a lodestar of \$188,700 with hourly rates requested ranging from \$500.00 to \$900.00. (Han Decl., ¶11.)

In reviewing the evidence submitted, the court finds that the hourly rates are reasonable. Counsel rely on rates in Los Angeles County, but this case is venued in San Mateo County and it is the reasonable rates for San Mateo that dictate the reasonable rates for attorneys' fees. " 'The reasonable hourly rate is that prevailing in the community for similar work.' " (See *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095].) Plaintiffs' counsel make no effort to show the reasonable hourly rates in San Mateo County, which is part of the San Francisco Bay Area. This court, however, may use its own experience to determine the value of attorneys' fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 ["The value of attorney's services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value."]; *Reynolds v. Ford Motor Company* (2020) 47 Cal.App.5th 1105, 1113-14 ["The trial court acted well within its discretion in using 'the prevailing market value in the community for similar legal services' relying on its personal knowledge and familiarity with the area legal services, as the 'touchstone' for determination" of the reasonable hourly rates.]" (citations omitted)].). This court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys' fees and costs frequently during her time as a judicial officer. The court finds the hourly rates reasonable.

The court has reviewed all the billing statements submitted by counsel and finds the work performed reasonable. If the court was awarding fees based solely on the hours worked, it would make some reductions, but since the lodestar is just a cross-check, the court finds the hours reasonable.

The lodestar amount is only \$238,297.50, much lower than the requested fees of \$650,000. However, the court awards the requested multiplier. The lodestar amount " 'may be adjusted by the court based on factors including ... (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.' " ([Citations])" (*Center for Biological Diversity v. County of San Bernardino* (2010) 185 Cal.App.4th 866, 899.) " '[T]he purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class.' " [Citation] "[T]he unadorned lodestar reflects the general local hourly rate for a fee-bearing case; it does not include any compensation for contingent risk, extraordinary skill, or any other factors a trial court may consider.... The adjustment to the lodestar figure, e.g., to provide a fee enhancement reflecting the risk that the attorney will not receive payment if the suit does not succeed, constitutes earned compensation; unlike a windfall, it is neither unexpected nor fortuitous. Rather, it is intended to approximate market-level compensation for such services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney fees.' " [Citation] In cases involving the enforcement of constitutional or statutory rights, "such fee enhancements may make such cases economically feasible to competent private attorneys. [Citation.] '[M]ost lawyers of this quality do seem to consider the prospects of success and the fee recoverable before adding to their crowded

calendars a case in which payment is contingent.’ ” [Citation.] (*Ibid.*) The trial court can consider contingent risk and delay in determining the reasonable hourly rates of the attorneys and not consider it when considering a multiplier. (*California DUI Lawyers Assn. v. Department of Motor Vehicles* (2022) 77 Cal.App.5th 517, 537.)

The court believes that a multiplier is appropriate here because of the fact that plaintiffs’ counsel has had to wait to get paid for the work they have performed and plaintiffs’ counsel worked efficiently to consolidate two cases into one case, and they combined the class and PAGA claims into one case. The work performed by the different firms is reasonable. The court seeks to award these efficiencies, which decreased the work for both the Alameda and San Mateo Superior Court. While there were no novel issues in this case, the recovery is significant for most class members.

COSTS

The court approves the costs of \$31,957.47 to class counsel as reasonable and necessarily incurred. The court also approves the fees of \$18,500.00 to Apex as reasonable and necessarily incurred.

SERVICE FEE AWARD

Both class representatives request \$15,000 as a fee award, but the court awards \$7,500.00 to each class representative as a reasonable service fee award. The court acknowledges the important role they played in the litigation. While they signed a general release, they provides no facts to demonstrate that they had any claim different than the class members. While the court is aware of reputation harm, the law protects an employee from being retaliated against by an employer and if plaintiffs believe that any employer is retaliating against her for being a plaintiff in this lawsuit, they shall notify their counsel who shall immediately notify the court. The court has not been advised at any time during the course of this litigation of any alleged retaliation. *Gentry v. Superior Court* (2007) 42 Cal.4th 443 discusses the fear of retaliation as a reason an employee might not bring a lawsuit, but our Supreme Court states that the statistics demonstrated that enforcement mechanisms to sanction retaliation were working. (*Id.* at pp. 460-461.) The court acknowledges the in excess of 30-40 hours that class representatives state that they spent on the case and an incentive award gives them between \$187.50 to \$250.00 per hour. They did not have to sit for a deposition, respond to discovery or attend the mediation or any court hearings. There is a list of cases where \$15,000.00 were awarded as service awards, but there is no discussion for any of the cases of what the class representative did in those cases. The court knows many of the state court trial judges listed and respects each of her colleagues’ decisions, but this court makes an independent assessment of the reasonableness. The court concludes that for this case, \$7,500.00 for each class representative is the appropriate service award.

The parties are either to email Department 4 by 11:00 a.m. on June 30, 2026 with a proposed hearing date for the compliance hearing, or properly contest the tentative ruling and suggest at the hearing a compliance hearing date.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The court modifies San Mateo Local Rule to allow the parties to add additional information that they believe is necessary, but only when it is not inconsistent with the tentative ruling issued by the court. The court also suggest that the parties add the findings from the preliminary approval ruling since the final settlement approval summarizes those findings.

2:00 PM

LINE 4

23-CIV-05931 AMANDA NUNEZ, ON BEHALF OF HERSELF AND ON BEHALF OF ALL PERSONS SIMILARLY
SITUATED VS UNIVERSITY HEALTHCARE ALLIANCE

AMANDA NUNEZ, ON BEHALF OF HERSELF AND ON BEHALF OF ALL
PERSONS SIMILARLY SITUATED
UNIVERSITY HEALTHCARE ALLIANCE

ANDREW G. RONAN

RACHEL WINTTERLE

MOTION FOR ATTORNEYS FEES

TENTATIVE RULING:

See tentative ruling on motion for final approval.

2:00 PM

LINE 5

23-CIV-05931 AMANDA NUNEZ, ON BEHALF OF HERSELF AND ON BEHALF OF ALL PERSONS SIMILARLY
SITUATED VS UNIVERSITY HEALTHCARE ALLIANCE

AMANDA NUNEZ, ON BEHALF OF HERSELF AND ON BEHALF OF ALL
PERSONS SIMILARLY SITUATED
UNIVERSITY HEALTHCARE ALLIANCE

ANDREW G. RONAN

RACHEL WINTTERLE

COMPLEX CASE MANAGEMENT CONFERENCE

TENTATIVE RULING:

In light of the court's ruling on the motion for final approval and attorneys' fees, the court takes the case management conference OFF CALENDAR.

2:00 PM

LINE 6

24-CIV-01127

E.T.I. INT'L. VS. KEVIN YIP, ET AL.

E.T.I. INT'L.
KEVIN YIP

BIN LI
MATTHEW D. MARCA

MOTION FOR PROTECTIVE ORDER

TENTATIVE RULING:

The Court orders the parties to APPEAR (Zoom appearances are allowed) on defendants Kevin Yip, Katy Yip, Sau Chun Ng, and Q.S. International Logistics, Inc.'s Motion for Protective Order.

This motion addresses the issue of whether plaintiff E.T.I. Int'l, Inc.'s designation of its alleged trade secrets is sufficient under Code of Civil Procedure section 2019.210.

The parties are to identify whether plaintiff's identification of trade secrets has been submitted in this motion. Exhibit B to the declaration of Matthew D. Marca in support of the protective order, which was not filed under seal, is a document entitled Trade Secrets Identification. Plaintiff, however, states in its reply brief (but not in any declaration) that it provided a separate trade secret designation, under protective order, with extensive information inside it. (Memo in Opp at p. 2 of the brief (counting the caption as page 1).) If Exhibit B to the Marca declaration is the identification, then defendants breached the protective order by filing in the court record a document marked confidential. Plaintiff does not raise any issue of breach of the protective order. No document has been lodged under seal with respect to this motion. Thus, it appears that the court does not have plaintiff's Trade Secret Identification. Without having the document, the court cannot determine if the descriptions are specific enough to satisfy the requirements of Code of Civil Procedure section 2019.210.

Further, defendants' motion lists categories of documents, but no party cites a case specifically dealing with whether that category of document can be considered a trade secret. For example, a customer list can be considered a trade secret. (*Courtesy Temporary Service, Inc. v. Camacho* (1990) 222 Cal.App.3d 1278, 1287.) The court found this case on its own, but it does not have the time or responsibility to search for cases for every category of documents listed in Exhibit B to the Marca declaration. Without such authority, the does not have a framework to analyze whether the information claimed by plaintiff to be trade secrets meet that definition. Defendants cite *Loop AI Labs Inc. v. Gatti* (N.D. Cal. 2016) 195 F.Supp.3d 1107 (*Loop AI*) to argue that general business information is not protected, but the designation in *Loop AI* was more general than some of the designation attached as Exhibit B to the Marca declaration. In *Loop AI*, the plaintiff designated:

“Business Development/Marketing Data” and “Financial/Operational Data” headings, Plaintiff identifies categories of information such as “actual and prospective investors and partners,” (¶ 34), “key contact information ... at a large Japanese technology company,” (¶ 36), “key contacts at a major telephone company,” (¶ 38), “confidential target partner, client, investor, supplier, employee, consultant, advisor information,” (¶ 42), and “key service providers” (¶ 46). See also Disclosure at ¶¶ 17, 37, 39, 45–47, 54.

(*Id.* at p. 1115.) Plaintiff, in contrast, provides identification of specific documents for Categories 1, 2, 3, and 5 although it is unclear if the descriptions under these categories are additional categories of documents or description of the main category. Category 4 appears general like the descriptions in *Loop AI* with no way for defendants to conduct any public searches to see if plaintiff made the documents public. However, since plaintiff stated it produced a more extensive trade secret designation, these designations appear immaterial.

Due to the sensitive nature of the court’s inquiry, it would seem that the list of trade secrets and the discussion about the documents should be done under seal.

2:00 PM

LINE 7

25-CIV-00410 DUJUAN GREEN VS. GENERAL MOTORS, LLC

DUJUAN GREEN
GENERAL MOTORS, LLC

DAVID N. BARRY
RYAN KAY

PLAINTIFF'S MOTION FOR ATTORNEYS' FEES AND COSTS PURSUANT TO CIVIL CODE SECTION 1794(d)

TENTATIVE RULING:

On the court's own motion, the court continues the motion to July 21, 2026 at 2:00 p.m.

2:00 PM

LINE 8

25-CIV-03634

PATRICK BALDWIN VS. UMANG KAJARIA, ET AL.

PATRICK BALDWIN
UMANG KAJARIA

CHRISTOPHER MADER
DAVID T. MOUTOUX

MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES AND REQUESTS FOR ADMISSION, AND REQUEST FOR SANCTIONS

TENTATIVE RULING:

The court DENIES without prejudice plaintiff and cross-defendant Patrick Baldwin's unopposed motion to compel responses to form interrogatories, and requests for admissions and sanctions failure to provide proper notice to defendants and cross-complainants Umang Kajaria and Neha Agarwal Kajaria of the hearing.

In the notice of motion, Baldwin put the date of June 23, 2026 as the hearing date. Then the clerk's office changed the hearing date to June 30, 2026. The court file shows a proof of service filed March 25, 2026, the same date of the filing but endorsed filed-documents are not returned the same day they are filed. Thus, the notice sent to defendants did not have the correct date.

There is no amended proof of service in the court file. Therefore, defendants did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 9

25-CIV-09346

ROSEANNA LEUNG VS. KAMIL BROZEK, ET AL.

ROSEANNA LEUNG
KAMIL BROZEK

SEAN M. NOVAK
NAVDEEP K. SINGH

DEFENDANTS BIGPANDA, INC., KAMIL BROZEK AND TOM MELZL'S DEMURRER TO PLAINTIFF'S COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Defendants BigPanda, Inc.'s (BigPanda), Kamil Brozek's, and Tom Melzl's demurrer, filed April 10, 2026, which is directed to Plaintiff Roseanna Leung's November 21, 2025 complaint, is SUSTAINED with leave to amend as to all asserted causes of action.

Background

This is a wrongful termination case involving allegations of discrimination, harassment, and retaliation. Plaintiff Roseanna Leung's complaint alleges that plaintiff is an "Asian-American female" who began working for defendant BigPanda in January, 2023. (§ 22.) In March, 2024, plaintiff began working under defendant Tom Melzl, the company's CFO, and in July, 2024, plaintiff began reporting to defendant Kamil Brozek. (§§ 23-24.) As alleged, in August, 2024, plaintiff began being subjected to "harassment and discriminatory misconduct" by defendant Brozek "relating to her sex, gender and racial background." (§ 25.) Plaintiff alleges that she witnessed defendant Brozek "engaging in unlawful harassment and discriminatory misconduct directed at other female employees." (§ 26.) Plaintiff contends she reported this "harassment and discriminatory misconduct" to defendant Melzl and to the company's Human Resources department, but with no resolution. (*Ibid.*) BigPanda, Inc. terminated Plaintiff's employment in December 2024. Plaintiff contends that the company terminated her for discriminatory reasons, and in retaliation for Plaintiff having complained about violations of the law.

The asserted claims. The complaint asserts the following six causes of action against each of defendant Big Panda, Inc., Kamil Brozek, and Tom Melzl:

1. Gender/Sex Discrimination (Gov. Code, § 12941 *et. seq.*);
 2. Retaliation in Violation of FEHA and Labor Code sections 1102.5 *et seq.*;
 3. Sexual Harassment and Failure to Take All Reasonable Steps Necessary to Prevent Discrimination (Gov. Code, §12940(k));
 4. Wrongful Termination;
 5. Racial Discrimination (Gov. Code, § 12941 *et seq.*);
 6. Violation of Business & Professions Code section 17200 *et seq.*
-

Defendants demurrer to each cause of action for failure to state a cause of action, and to the second and third causes of action for being uncertain. The individual defendants, Brozek and Melzl, also demurrer to the first through fifth causes of action on the basis that the causes of action fail to state a claim against them under *Reno v. Baird* (1998) 18 Cal.4th 640, 663-664.

Legal standard

A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.10, subd. (e), 430.30 & 430.70.)

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda*, (2007) 147 Cal.App.4th 740, 747.) A demurrer founded on section 430.10(e) which arises when an allegation essential to a cause of action is missing, is often referred to as a “general demurrer.” (*McKenney v. Purepac Pharm. Co.* (2008) 167 Cal.App.4th 72, 77.) “Neither trial nor appellate courts should be distracted from the main issue, or rather, the only issue involved in a demurrer hearing, namely, whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” [Citation omitted.] (*Ibid.*)

When a plaintiff “has stated a cause of action under any possible legal theory” it is error to sustain a demurrer. (*Bush v. California Conservation Corps* (1982) 136 Cal.App.3d 194, 200.) When considering demurrers, courts give the complaint a reasonable interpretation, reading it as a whole and the parts in their context, in the light most favorable to the plaintiff and liberally construed with a view to attaining substantial justice among parties. (*Villafana v. County of San Diego* (2020) 57 Cal.App.5th 1012, 1016-1017 [citations omitted].)

Uncertainty (section 430.10, subdivision (f)) is generally a difficult ground on which to sustain a demurrer:

Even though the complaint is in some respects uncertain, the courts often hold it good against demurrer on the theory that, “though not a model of pleading,” its allegations, liberally construed, are sufficient to apprise the defendant of the issues that he or she is to meet.

(3 Witkin, *Cal. Proc.* 6th Plead. § 975 (Mar. 2026 update) (citations omitted).) Demurrers for uncertainty are disfavored. (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822 (and citations therein).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616 (*Khoury*) (citations omitted).) A special demurrer for uncertainty should not be sustained when the allegations of the complaint “are sufficiently clear to apprise the defendant of the issues” which must be met. (*Bacon v. Wahrhaftig* (1950) 97 Cal.App.2d 599, 605 (citations omitted).) Such a demurrer should be “granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*Morris v. JPMorgan Chase Bank, N.A.* (2022) 78 Cal.App.5th 279, 292 (citations omitted).)

Finally, leave to amend should be granted if it is reasonably possible for defects in pleading to be cured. As explained by the Supreme Court of California, it is well settled that “Generally, it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.)

Discussion

The Complaint, and Each Cause of Action Fail to State a Cause of Action

The issue in defendants’ demurrer based upon failure to state a cause of action is whether plaintiff pleads ultimate facts, as she claims, or conclusions of law as defendants claim. A complaint must contain “a statement of the facts constituting the cause of action in ordinary and concise language.” (Code Civ. Proc., § 425.10.) Defendants rely on *Rakestraw v. California Physicians’ Serv.* (2000) 81 Cal.App.4th 39, 44 throughout their argument, but the court does not find the case helpful because it deals with the amendment of a complaint after a demurrer and the burden a plaintiff must meet to amend the complaint. While the case states the legal rule applicable to this situation, it is not helpful with the analysis for this demurrer.

A leading practice guide explains that it often difficult to distinguish between ultimate facts, evidentiary facts and legal conclusion:

[6:124] Distinguishing “ultimate facts” from “evidence” or “conclusions”: Lawyers and judges have struggled with these distinctions. “Ultimate facts” are those that raise the issues on which the right to recover depends—i.e., the essential elements of the cause of action. All the facts that are material to the cause of action—i.e., the facts that make a difference to the outcome of the case—must be alleged (see ¶ 6:400, 10:230, 10:271). [*Estes v. Eaton Corp.* (2020) 51 CA5th 636, 643, 265 CR3d 202, 208, fn. 2 (quoting text); *Foster v. Sexton* (2021) 61 CA5th 998, 1027, 276 CR3d 172, 197—“distinguishing ‘ultimate facts’ from ‘evidentiary facts’ and ‘legal conclusions’ can be difficult” (citing text); *Thomas v. Regents of Univ. of Calif.* (2023) 97 CA5th 587, 610-611, 315 CR3d 623, 641 (citing text)]

(*Cal. Prac. Guide Civ. Pro. Before Trial* § 6:124 (TRG June 2026 update).) The case law provides guidance. “[P]arrotting the legal elements of the cause of action, are not sufficient to state a claim.” (*Rincon Band of Luiseno Mission Indians etc. v. Flynt* (2021) 70 Cal.App.5th 1059, 1112.) For example, in discussing a claim for negligent hiring, supervision or retention, the Court of Appeal stated: “Plaintiff claims that BRS was negligent in hiring, supervising, and/or retaining Sanders, Giles and Carroll because BRS ‘knew or should have known that’ these employees were “unfit, and that this unfitness created a particular risk to others.’ These boilerplate legal conclusions about BRS’s knowledge are insufficient to allege a cause of action. (*O’Grady v. Merchant Exchange Productions, Inc.* (2019) 41 Cal.App.5th 771, 777 [‘we are not bound to respect a pleader’s ‘legal characterization’ of events or transactions’].)” (*Kruitbosch v. Bakersfield Recovery Services, Inc.* (2025) 114 Cal.App.5th 200, 225.) And in discussing

ratification in an employment case, the Court of Appeal explained that an allegation by Thomas, the plaintiff, that the employer, UCB, ratified the conduct would be conclusory, but that plaintiff pled ultimate facts by pleading “Knowlton, acting as UCB's employee and agent in his capacity as director of the athletics department, was informed of the misconduct but disregarded it.” (*Thomas v. Regents of University of California* (2023) 97 Cal.App.5th 587, 620.) The court further explained in finding that the plaintiff's allegation of special relationship was insufficient explained:

Thomas's allegation that McGuire “cultivated a special relationship of trust by [her] in his good faith and agreed to act on [her] behalf for the advancement of her athletic career” is conclusory, as the trial court said: It does not offer facts in support of the conclusion stated. The trial court explained what was missing in its further comment that the allegation “does not reflect a decision by McGuire to voluntarily undertake a fiduciary obligation to plaintiff.” None of the allegations Thomas claims the trial court failed to consider allege facts demonstrating that McGuire cultivated a “special relationship of trust” with her or agreed to act on her behalf to advance her career. The allegations that McGuire recruited Thomas to the women's soccer team, she followed his training demands and performed well, he told her she was a promising player, and it is uncommon for a player to be released despite successful performance and adherence to training demands might support finding an expectation on Thomas's part that she would remain on the team. They do not allege facts supporting a conclusion that McGuire agreed to keep Thomas on the team or otherwise act to advance her career and interests above and beyond the potentially conflicting interests of her teammates.

(*Id.* at p. 634.)

In this case, there is an absence of any facts in plaintiff's complaint to support her claims. The allegations are exclusively legal conclusions. Accordingly, the court sustains the demurrer with leave to amend for each cause of action for failure to state a cause of action.

The Second and Third Causes of Action Are Uncertain

While uncertainty is an unfavored ground for a demurrer, its use is appropriate for the second cause of action. For the second cause of action, plaintiff impermissibly combines two causes of action. (Cal. Rules of Court, rule 3.112.) For the third cause of action, plaintiff fails to provide a legal theory upon which her claim for sexual harassment is based. Combined with the fact that plaintiff fails to allege facts, this failures make the second and third cause of action uncertain. Accordingly, the court sustains the demurrer with leave to amend for the second and third cause of action for uncertainty.

The Claims Against Brozek and Melzl Based Upon Their Roles As Supervisors Are Barred

Brozek and Melzl, also demurrer to the first through fifth causes of action on the basis that the causes of action fail to state a claim against them under *Reno v. Baird*, *supra*, 18 Cal.4th at pp. 663-664, which holds that supervisory employees cannot be liable under Fair Employment and

Housing Act (FEHA) or for discharge in violation of public policy for discrimination relating to personnel management decisions. (See *Cal. Prac. Guide Employment Litigation* § 5:25 [citing *Reno v. Baird*] (TRG Mar. 2026 update); see also *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal. 4th 1158, 1162-64 [under FEHA, individual supervisors cannot be personally liable for retaliation]; *Miklosy v. Regents of Univ. of California* (2008) 44 Cal. 4th 876, 900 [“An individual who is not an employer cannot commit the tort of wrongful discharge in violation of public policy; rather, he or she can only be the agent by which an employer commits that tort.”]) Plaintiff alleges in paragraph 13 of the complaint that “Defendants’ managing agents, officers or directors approved, including defendants BROZEK and MELZL, ratified and authorized the conduct of its managers, administrators, supervisors, employees, and agents leading up to Plaintiff’s ultimate termination.” These claims based upon Brozek and Melzl supervisory roles are barred. The amended complaint shall not include any allegations regarding liability based upon supervisory or managerial acts. The demurrer to the second and fourth causes of action are sustained without leave to amend unless plaintiff properly contests the tentative and provides facts at the hearing sufficient to state a cause of action. (*Frayo v. Martin* (2024) 102 Cal.App.5th 1025, 1033)

However, plaintiff also alleges in 25 that she was subject to harassment and discriminatory conduct by Brozek relating to her sex, gender and racial background. (See also ¶ 25 that she witnessed him harass others). An individual can be liable for his own conduct. (Gov. Code, § 12940, subd. (j)(3) [“An employee of an entity subject to this subdivision is personally liable for any harassment prohibited by this section that is perpetrated by the employee, regardless of whether the employer or covered entity knows or should have known of the conduct and fails to take immediate and appropriate corrective action.”]; *Judicial Council Of California Civil Jury Instruction* 2522A, 2522B (Feb. 2026 update).) Thus, if plaintiff can plead ultimate facts of harassment by Brozek (or Melzl but the allegations are more general against him), then she will state a cause of action for individual liability for the first, third and fifth causes of action.

Plaintiffs have 10 days from service of written notice of entry of order to file and serve a First Amended Complaint. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc. § 472b.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendant shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 10

26-CIV-00592

RIGOBERTO SOTELO, ET AL. VS. MIKE ZEPEDA, ET AL.

RIGOBERTO SOTELO
MIKE ZEPEDA

RAMON BALDONADO
MICHAEL D. LIBERTY

DEFENDANTS' MOTION FOR RELIEF FROM DEFAULT

TENTATIVE RULING:

The motion for relief from the default entered on April 15, 2026, as to defendant MJ Classics LLC d/b/a 805 Impala, is GRANTED. The declaration of Joanna Dominguez-Zepeda, manager and member of MJ Classics, offers evidence to establish that the default was entered as a result of mistake or her excusable neglect. Zepeda attempted to file the answer on three occasions, but the filings were rejected by the clerk of the court because of mistakes in the format of the pleadings. However, these type of mistakes are easily curable and should not result in default. The policy of the court is to allow such mistakes to be corrected. (See *Walton v. Victor Valley Community College Dist.* (2026) 119 Cal.App.5th 1164, 1167, as modified on denial of reh'g (Apr. 14, 2026), review filed (May 26, 2026) [court should not have granted summary judgment based on unsigned declaration when the technical oversight is a curable defect]; *Mito v. Temple Recycling Center Corp.* (2010) 187 Cal.App.4th 276, 280 [requiring trial court to treat complaint as filed even in the absence of a civil case cover sheet]). The fact that an entity is unable to represent itself may be a reason for the opposing party to move to strike the answer, it is not the role of the clerk to reject a filing on that basis.

Defendant shall file the proposed answer, attached as Exhibit A to the declaration of Michael Liberty, no later than July 7, 2026.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 11

26-CIV-00808

TREMIN CORPORATION VS. MICHAEL HARBOUR, ET AL.

TREMIN CORPORATION
MICHAEL HARBOUR

PATRICK J. WHITEHORN
CHARLES S. BRONITSKY

MOTION TO REMOVE MECHANIC'S LIEN

TENTATIVE RULING:

On the Motion to Remove Mechanic's Lien by Defendants and Cross-Complainants Michael Harbour and Andres Mediavilla ("Defendants"), the Court continues the motion to July 21, 2026 at 2:00 p.m. in Department 4 to allow for further briefing on the issue of the illegality of the contract. Simultaneous briefing of no more than ten (10) pages for the memorandum of points and authorities shall be filed and served by July 13, 2026.

Plaintiff Tremin Corporation dba Bay West Builders ("Plaintiff"), a contractor, brings this action seeking payment for work performed on a home improvement contract for real property owned by Defendants. The Complaint alleges that the parties entered into an oral agreement for this work on or about December 9, 2021. (Complaint, ¶ 9.) On November 5, 2025, Plaintiff recorded a Notice and Claim of Mechanics' Lien against the property. (Complaint, Exh. B.) The Complaint includes a cause of action to foreclose on the mechanic's lien. Defendants bring this Motion seeking to remove the mechanic's lien.

As a threshold matter, Defendants fail to cite any legal authority for bringing this Motion or the legal standard that applies to this Motion. (See Cal. Rules of Court, rule 3.1113(b) [memorandum must contain a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases and textbooks cited in support of the position advanced]; *id.*, rule 3.1110(a) ["A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order].) The Court does not need further briefing on this issue, but in the future counsel should provide the legal authority for the motion.

"A motion to remove a mechanic's lien is recognized as a device that allows the property owner to obtain speedy relief from an unjustified lien or a lien of an unjustified amount without waiting for trial on the action to foreclose the lien. (*Howard S. Wright Construction Co. v. Superior Court* (2003) 106 Cal.App.4th 314, 318 (*Howard S. Wright*), citing *Lambert v. Superior Court* (1991) 228 Cal.App.3d 383.) The inquiry on a motion to remove a mechanic's lien is limited to the probable validity of the lien. (*Id.*, citing *Lambert*, *supra* at p. 387.) The determination is not the ultimate merit of the contractor's claim, but whether the contractor should be entitled to retain the security of the mechanic's lien pending resolution of the matter. (*Cal. Sierra Construction, Inc. v. Comerica Bank* (2012) 206 Cal.App.4th 841, 850.) The granting of a motion to remove a mechanic's lien is essentially a judgment on the underlying foreclosure action that no lien exists

and removes the lien from the public records upon recordation of the judgment. (*Howard S. Wright, supra*, 106 Cal.App.4th at p. 318.)

Defendants raises two argument in support of this Motion. The first argument is that the agreement does not comply with Business and Professions Code section 7159 and therefore it is illegal. The second argument is that the lien is invalid because it was not timely recorded.

Whether contract is illegal

Business and Professions Code section 7159, subdivision (c), sets forth provisions for a home improvement contract, including that the contract be in writing and signed and dated by the parties. (See Bus. & Prof. Code, § 7159, subd. (c).) Since the Complaint alleges that the parties entered into an oral agreement to perform the work on the property (Complaint, ¶ 9), Defendants contend the agreement is illegal. Defendants do not cite any legal authority to support that failure to comply with section 7159 voids the agreement as illegal. On the other side, Plaintiff does not address this argument in opposition.

The court notes that a wide range of exceptions has been recognized to section 7159. (See *Asdourian v. Askew* (1985) 38 Cal.3d 276, 291 (*Asdourian*), superseded by statute on other grounds as stated in *Tufeld Corp. v. Beverly Hills Gateway, L.P.* (2022) 86 Cal.App.5th 12, 27-29.) In *Asdourian*, the court concluded that a contract in violation of section 7159 did not present the type of illegality that automatically renders a contract void, but rather voidable depending on the factual context and the public policies involved. (*Id.* at p. 293.) Further, in compelling cases, illegal contracts will be enforced in order to avoid unjust enrichment to a defendant and a disproportionately harsh penalty to the plaintiff. (*Id.* at p. 292.)

Since neither party has adequately briefed this issue, the parties are to brief this issue and whether the failure to comply with section 7159 warrants removing the lien. The parties may also submit any relevant evidence in support of their position.

Whether Plaintiff's recorded lien is untimely

The parties disagree as to whether Plaintiff timely recorded its lien and therefore whether Plaintiff is able to establish the probable validity of its lien.

“A direct contractor may not enforce a lien unless the contractor records a claim of lien after the contractor completes the direct contract, and before the earlier of the following times: (a) Ninety days after completion of the work of improvement. (b) Sixty days after the owner records a notice of completion or cessation.” (Civ. Code, § 8412.) Civil Code section 8180 sets forth the acts that signify completion of the work of improvement, stating:

§ 8180. Acts signifying completion

(a) For the purpose of this title, completion of a work of improvement occurs upon the occurrence of any of the following events:

- (1) Actual completion of the work of improvement.
- (2) Occupation or use by the owner accompanied by cessation of labor.
- (3) Cessation of labor for a continuous period of 60 days.
- (4) Recordation of a notice of cessation after cessation of labor for a continuous period of 30 days.

...

(Civ. Code, § 8180, subd. (a).)

Under Civil Code section 8180, subdivision (a)(1), Defendants claim that actual completion of the project took place by April 2025 because that is the last invoice provided by Plaintiff's counsel and has the same outstanding balance alleged in the Complaint. (Bronitsky Decl., and Exh. 1.) Plaintiff's evidence supports that the work was not actually completed by that time though. Towes, Plaintiff's Superintendent, states that at Harbour's request, he performed work on various items on the project on June 13, 2025 and June 16, 2025. (Towes Decl.) Defendant provides no evidence in reply to refute Towes' Declaration. Therefore, this argument fails.

Under Civil Code section 8180, subdivision (a)(2), Defendants claim that completion of the work occurred on March 30, 2025 because Defendants moved into their house on that date. (Harbour Decl.) Section 8180, subdivision (a)(2) provides not only for occupation by the owner, but it must also be accompanied by cessation of labor. Once again, Towes' Declaration supports that cessation of labor did not occur until June 2025. Plaintiff has not shown that the lien is therefore untimely under this subdivision.

Moreover, Plaintiff's argument is persuasive that its lien is timely under Civil Code section 8180, subdivision (a)(3). Once again, Towes' Declaration supports that labor still took place as of June 16, 2025. Even if labor ceased as of that date, 60 days thereafter is August 15, 2025. Plaintiff then had 90 days from this cessation of work, i.e. November 13, 2025, to file the lien. Plaintiff recorded the lien on November 5, 2025. (Complaint, Exh. B.)

The court therefore DENIES Defendants' Motion on this ground because it finds that Plaintiff has established the probable validity of its lien being timely.

Defendants' Evidentiary Objections to the Gray Declaration

Paragraphs 10, 18: OVERRULED.

Paragraphs 12-14, 19-21, and Exhs. B, C, G, H and I: SUSTAINED based on lack of foundation/personal knowledge and hearsay.

Paragraph 17 and Exhs. E and F: SUSTAINED based on lack of foundation/personal knowledge to “One container was relocated on or around June 17, 2025, and another container was relocated from the Project site on July 2, 2025. Attached hereto as Exhibit E is a true and correct copy of the return ticket receipt from the pick up of one container on or around June 17, 2025.”
OVERRULED to the remainder of paragraph 17 and Exhibit F.

2:00 PM

LINE 12

26-CIV-01102

CARRIE YAN VS. COUNTY OF SAN MATEO

CARRIE YAN
COUNTY OF SAN MATEO

BART A. SEEMEN
SAN MATEO COUNTY ATTORNEY'S
OFFICE

DEMURRER TO PLAINTIFF'S COMPLAINT

TENTATIVE RULING:

Defendant San Mateo County's demurrer to all causes of action in the complaint filed by Plaintiff Carrie Yan on February 13, 2026 is **OVERRULED IN PART** and **SUSTAINED IN PART**. Leave to amend the sixth cause of action is **GRANTED**.

A. Background

This is an employment action arising out from Plaintiff Carrie Yan's May to December 2025 employment with San Mateo County as an Extra Help Benefits Analyst I.

From May 2025 through approximately September 2025, Yan engaged in her training period with the County and received a review rating of "competent" at her training graduation. (Compl. ¶¶ 20 & 21.) Plaintiff was then placed at a call center and she began to see a therapist because of worsening mental health symptoms related to the "stress, anxiety, fatigue, and burnout" from working at the call center in September and October. (Compl. ¶¶ 24 & 25.)

By October 2025, Yan spoke with her supervisor, Griselda Ruiz, and requested a transfer to a non-call center position and was told that transfers were not permitted until an employee had completed six months of employment with the County, and that transfers were based on seniority. (Compl. ¶ 26.)

In mid-November 2025, Yan submitted an accommodation request to the County's Human Resources Department. Yan alleges that the County failed to engage in the interactive process regarding her need for accommodation. (Compl. ¶¶ 30 & 31.)

In December 2025, plaintiff began seeing a new therapist and voluntarily elected to resign from her position on December 19, 2025. This was less than seven months after starting employment and three months after beginning her role at the call center. (Compl. ¶¶ 34 & 38.)

On February 13, 2026, plaintiff filed the underlying complaint which raises six causes of action under the California Fair Employment and Housing Act (Gov. Code, § 12900 et seq.) ("FEHA") and Labor Code section 1102.5. The causes are:

1. Disability Discrimination – FEHA
2. Failure to Provide Reasonable Accommodation – FEHA
3. Failure to Engage in the Interactive Process – FEHA
4. Retaliation – FEHA
5. Failure to Prevent Discrimination and Retaliation – FEHA
6. Violation of California Labor Code section 1102.5

On March 16, 2026, the parties met and conferred pursuant to Code of Civil Procedure, section 430.41, but were unable to reach a resolution. (Declaration of Candice Saadian Costa, filed March 23, 2026 iso Demurrer, ¶ 4.)

On March 23, 2026, Defendant filed the instant demurrer. Defendant demurs to the complaint in entirety for failure to state sufficient facts; the first five causes of action fail to allege a disability under FEHA and the sixth cause of action for failing to allege that plaintiff engaged in any protected whistleblowing activities. Alternatively, even if a disability were alleged, defendant contends the first cause of action for discrimination fails to allege an adverse employment action since plaintiff voluntarily resigned. Plaintiff opposes, contending the demurrer misapprehends both the governing pleading standard and the substantive law.

B. Legal Standard

The rules for a demurrer are well known: In reviewing the demurrer, the Court construes the allegations liberally, reading the complaint as a whole, with a view to substantial justice between the parties. (Code of Civ. Proc., § 452; *Saxer v. Philip Morris Inc.* (1975) 54 Cal.App.3d 7, 18.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.10, subd. (e), 430.30, 430.70.) “[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation].” (*John’s Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013 (*John’s Grill*), quoting *Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 496.)

A court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*John’s Grill, supra*, 16 Cal.5th at p. 1008, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), but does not “assume the truth of contentions, deductions or conclusions of law.” (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.) Rather, the “demurrer tests the sufficiency of the plaintiff’s complaint, i.e., whether it states facts sufficient to constitute a cause of action upon which relief may be based.” (*Villarroel v. Recology, Inc.* (2023) 97 Cal.App.5th 762, 772, quoting *McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1469.)

C. Discussion

The FEHA Causes of Action

Defendant contends that the first five causes of action in the complaint, all of which allege different FEHA violations (Disability Discrimination, Failure to Provide Reasonable Accommodation, Failure to Engage in the Interactive Process, Retaliation and Failure to Prevent Discrimination and Retaliation), fail in unison because Plaintiff's sole claimed disability—work related stress and anxiety—is not a qualifying disability under FEHA. The issue in this demurrer is whether the following allegations are sufficient to allege a mental disability under FEHA:

24. The demanding nature of the call center work environment caused Ms. Yan to experience significant and worsening stress, anxiety, fatigue, and burnout from September through October 2025.

25. As a result of her worsening mental health symptoms caused by the call center work environment, Ms. Yan began seeing a therapist in September 2025. Ms. Yan's therapist documented that she was experiencing significant work-related stress, anxiety, fatigue, and burnout directly attributable to her work conditions.

(Compl., ¶¶ 24, 25; see also *id.*, ¶ 5 [listing “work related stress, anxiety, fatigue and burnout as documented by her treating therapist, which substantially limited one or more major life activities”]; ¶ 34 [referencing another therapist but not alleging any diagnosis from provided].)

“California's Fair Employment and Housing Act (Gov. Code, § 12900 et seq.) (FEHA) defines and prohibits several unlawful employment practices, including (1) “discriminat[ing] against a person” because of a “physical” or “mental disability,” (2) “fail[ing] to make reasonable accommodation” for a “known physical or mental disability,” and (3) “fail[ing] to engage in a timely, good faith, interactive process ... to determine effective reasonable accommodations.” (§ 12940, subs. (a), (m)(1) & (n).) (*Husband v. Target Corporation* (2026) 120 Cal.App.5th 762 [344 Cal.Rptr.3d 622, 625].) Courts construe FEHA broadly rather than restrictively. (*Vernon v. State of California* (2004) 116 Cal.App.4th 114, 123; Gov. Code, § 12993, subd. (a).)

“‘Mental disability’ for purposes of FEHA includes ‘any mental or psychological disorder or condition,’ which in turn includes ‘mental illness’ (Gov. Code, § 12926, subd. (j)(1))” (*Husband v. Target Corporation*, *supra*, 120 Cal.App.5th 762 [344 Cal.Rptr.3d 622, 629] that limits a major life activity. (Gov. Code, § 12926, subd. (j)(1).)

Defendant focuses on the lack of a specific diagnosis of a mental condition being alleged and emphasizes that “FEHA prohibits discrimination based on an employee’s disability or perceived disability, but it “does ‘not guarantee employees “a stress-free working environment.”” (*Arteaga v. Brink's, Inc.* (2008) 163 Cal.App.4th 327, 344) and “Work places are rarely idyllic retreats” (*Doe v. Department of Corrections & Rehabilitation* (2019) 43 Cal.App.5th 721, 735.) Defendant relies on *Higgins-Williams v. Sutter Medical Foundation* (2015) 237 Cal.App.4th 78, a summary judgment case where the trial court of Court of Appeal held that the plaintiff did not have a

FEHA recognized mental disability even though she was diagnosed with an adjustment disorder with anxiety because “[a]n employee's inability to work under a particular supervisor because of anxiety and stress related to the supervisor's standard oversight of the employee's job performance does not constitute a disability under FEHA.” (*Id.* at p. 84.) Defendant seeks to read *Higgins* broadly to say that its holding applies to all anxiety and stress cases in the workplace and not just anxiety and stress caused by the work place.

Defendant states in its reply brief: “The holding of *Higgins-Williams* is not limited to supervisor-generated stress. The court held broadly that an employee's ‘inability to work in her employment situation’ due to stress and anxiety did not constitute a FEHA disability because the plaintiff failed to demonstrate a disorder that limited any major life activity beyond her particular job situation. (*Id.* at pp. 84-85.)” (Reply at p. 3.) The court read the pin cite and has conducted a word search and does not find the phrase “inability to work in her employment situation” in the *Higgins* decision. By 11:00 on June 30, 2026, defense counsel Candice Saadian, the attorney who signed the brief, is to file, serve and email to Department 4 a declaration where she attaches the *Higgins* case with the phrase “inability to work in her employment situation” highlighted. Plaintiff claims that the case is limited to its facts, i.e., that there is no FEHA violation when stress is caused by a supervisor. Plaintiff states “Whether a plaintiff is in fact disabled is a question of fact that cannot be resolved on demurrer. *Soria v. Univision Radio Los Angeles, Inc.* (2016) 5 Cal.App.5th 570.” (Opp. at p. 2.) Plaintiff does not provide a pin cite and the court has done word searches and sees no language that supports plaintiff's statement. By 11:00 on June 30, 2026, plaintiff's counsel Bart Seemen, the attorney who signed the brief, is to file, serve and email to Department 4 a declaration where he attaches the *Soria* case and highlights where is the case the court made the proffered statement. *Soria* is factually distinct because in that case the plaintiff had cancer and the issue dealt with whether her stomach tumor limited her working and does not discuss how to define mental disability under FEHA.

Higgins provides guidance regarding how to analyze a mental disability, but it does not stand for the broad proposition that there can never be a mental disability based upon stress and anxiety in the work place. There is case authority, which the court found, to support plaintiff's position. In *Jensen v. Wells Fargo Bank* (2000) 85 Cal.App.4th 245 (*Jensen*), the Court of Appeal stated that “we cannot say that the [plaintiff's] stress disorder does not meet the definition of disability even were we to apply the stricter ADA test.” and reversed the trial court's granting of summary judgment (*Id.* at pp. 248-249, 259.) Plaintiff in *Jensen*, when she arrived at the defendant bank to work as a bank manager, was approached by two robbers who put a gun to her head and attempted to rob the bank. Even after the two robbers were convicted, she tried to return to her position but it was too stressful. (*Id.* at p. 249.) A federal district court, which is persuasive authority, relied on *Jensen* to hold that anxiety or stress may be considered a disability under FEHA. (*Kailikole v. Palomar Community College District* (S.D. Cal. 2019) 384 F.Supp.3d 1185, 1192–1193.)

In reading the allegations of the complaint liberally and accepting them as true, as the court must do on demurrer, the Complaint alleges facts sufficient to state a cause of action for the first, second, third, fourth and fifth causes of action.

In the alternative, defendant contends that even if the complaint adequately alleges a mental health disability, the first cause of action for discrimination in violation of FEHA fails to state a sufficient cause of action for lack of an adverse employment action due to her disability because plaintiff voluntarily resigned.

A prima facie case of disability discrimination under FEHA requires the employee to show he or she (1) suffered from a disability, (2) was otherwise qualified to do his or her job, and (3) was subjected to adverse employment action because of the disability. (*Faust v. California Portland Cement Co.* (2007) 150 Cal.App.4th 864, 886, 58 Cal.Rptr.3d 729.)” (*Choochagi v. Barracuda Networks, Inc.* (2020) 60 Cal.App.5th 444, 458.)

Here, plaintiff asserts the adverse employment action she experienced was, in essence, “the silent treatment” resulting from “[t]he COUNTY’s complete failure to respond to PLAINTIFF’s accommodation request, its refusal to engage in the interactive process despite confirmed receipt of her request and medical documentation, and its denial of transfer to available vacant positions may constitute discrimination based on disability. (Compl. ¶ 43.) Said refusal to remedy such conduct “subjected PLAINTIFF to the constructive termination of her employment.” (Compl. ¶¶ 45 & 46.)

Constructive discharge, like actual discharge, has been regarded as a materially adverse employment action. (*Steele v. Youthful Offender Parole Bd.* (2008) 162 Cal.App.4th 1241, 1253.) “ ‘Constructive discharge occurs when the employer’s conduct effectively forces an employee to resign.’ ” (*Atalla v. Rite Aid Corp.* (2023) 89 Cal. App. 5th 294, 319.) “The essence of the test is whether, under all the circumstances, the working conditions are so unusually adverse that a reasonable employee in plaintiff’s position would have felt compelled to resign.” (*Id.* at p. 320, internal quotation marks and citations omitted.) In other words, determining whether or not the constructive discharge alleged was in fact an adverse employment action is a question of fact to be resolved by testing the factual circumstances to determine whether the working conditions were so intolerable that any reasonable employee would quit. (See *Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1247.)

The complaint alleges sufficient facts, which read liberally, to show that the situation at plaintiff’s work became so intolerable due to, inter alia, their failure to engage in the interactive process, she was forced to quit, an adverse employment action. Thus this alternative argument fails.

Sixth Cause of Action- Violation of California Labor Code Section 1102.5

Plaintiff’s sixth cause of action is brought under Labor Code section 1102.5, which protects whistleblowers from retaliation. As former Justice Ming Chin of the California Supreme Court explains: “California law also bars employer retaliation against employees for whistleblowing (i.e., reporting violations of federal, state or local laws, rules or regulations to governmental agencies or to certain persons within the company) or for *refusing to violate* federal, state or local laws, rules or regulations, either on the present job or in any former employment. [See Lab.C. § 1102.5]” *Cal. Prac. Guide Employment* §

5:1538 (TRG Mar. 2026 update).) “The employee must show, as part of his or her prima facie case, that he or she suffered some adverse action by the employer occurring subsequent to or contemporaneously with the employee's exercise of protected rights.” (*Id.*, § 5:1543.)

Section 1102.5 provides whistleblower protections to employees who disclose wrongdoing to authorities. As relevant here, section 1102.5 prohibits an employer from retaliating against an employee for sharing information the employee “has reasonable cause to believe ... discloses a violation of state or federal statute” or of “a local, state, or federal rule or regulation” with a government agency, with a person with authority over the employee, or with another employee who has authority to investigate or correct the violation. (§ 1102.5, subd. (b).) “This provision,” we have explained, “reflects the broad public policy interest in encouraging workplace whistle-blowers to report unlawful acts without fearing retaliation.” (*Green v. Ralee Engineering Co.* (1998) 19 Cal.4th 66, 77, 78 Cal.Rptr.2d 16, 960 P.2d 1046.)

(*Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 709.)

Paragraph 88 of the Complaint lists the following as protected whistleblowing activities:

- reporting the COUNTY's failure to provide reasonable accommodations and engage in the interactive process as required by FEHA and the ADA;
- filing a workers' compensation claim; and
- reporting working conditions that required uncompensated work before the start of her paid shift and after the end of her scheduled shift in potential violation of California labor laws.

Paragraph 89 states in retaliation of the protected activities enumerated in paragraph 88 “DEFENDANTS subjected PLAINTIFF to adverse employment actions, including but not limited to ignoring her accommodation request, refusing to engage in the interactive process, denying her transfer to available vacant positions, and creating intolerable working conditions that resulted in her constructive termination.”

While defendant points to these activities (Opening Br. at p. 9), plaintiff limits the whistleblower complaint to reporting wage and hour violations. (Opp. at p. 9 [citing Compl. ¶¶23, 88.]

Here, even read liberally, the sixth cause of action fails to state a sufficient basis for a section 1102.5 claim because while she identifies wrongful acts, she only conclusory contends that she reported them and that conclusion without facts is not sufficient to state a cause of action. “[P]arrotting the legal elements of the cause of action, are not sufficient to state a claim.” (*Rincon Band of Luiseno Mission Indians etc. v. Flynt* (2021) 70 Cal.App.5th 1059, 1112.) Accordingly, the court SUSTAINS with leave the demurrer to the sixth cause of action.

Plaintiff has ten (10) days from service of written notice of entry of order to file and serve a First Amended Complaint. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 472b.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendant shall prepare a written order repeating verbatim the tentative ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law.

2:00 PM

LINE 13

26-CIV-01651

MOHAMMED YASIN VS. SUKHDEV SINGH DHILLON, ET AL.

MOHAMMED YASIN
SUKHDEV SINGH DHILLON

ERIC S RITIGSTEIN

MOTION FOR LEAVE TO FILE COMPLAINT-IN-INTERVENTION

TENTATIVE RULING:

Subject to any opposition credited by the court, the court will grant petitioner/proposed plaintiff-in-intervention Sentry Casualty Company's (Sentry) unopposed motion for leave to file a complaint-in-intervention once proper service on all parties is demonstrated or the other parties indicate that they do not oppose the motion.

The motion suffers from fatal procedural defects.

First, while there is a proof of service for the proposed order, there is no proof of service for the notice of motion, memorandum of points and authorities, and the declaration. Proofs of service must be filed five court days before the hearing. Second, in the notice of motion, Sentry did not put a hearing date for the motion and the clerk added the date of June 30, 2026 for the hearing. The court file shows a proof of service filed March 2, 2026 of the motion showing service of the motion on defendant on February 26, 2026. Thus, the notice sent to defendant did not have the correct date.

There is no amended proof of service in the court file. Therefore, the other parties did not receive proper notice of the hearing date including notice showing the other parties being served with all documents (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].) Further: “[P]roof of service fulfills the function of establishing that ‘procedures implementing the constitutional requirements of due process were followed giving assurance that service really has been made.’” (*West v. West* (1979) 92 Cal.App.3d 120, 124, 154 Cal.Rptr. 667.) Accordingly, when adequate proof of service is available, it is of no legal import that a party actually may not have received notice. (*Ibid.*) That being the case, the courts are very strict in applying the statutory standards for proof of service; failure to strictly comply with those standards deprives the court of jurisdiction to act. (*Ibid.*)” (*Oats v. Oats* (1983) 148 Cal.App.3d 416, 420.)

However, the right of Sentry to intervene is mandatory. Pursuant to Labor Code sections 3852 and 3853, Sentry, as the worker's compensation, has the statutory right to intervene in this action. Sentry has provided a proposed complaint in intervention.

Thus, if Sentry has properly served the motion, Sentry is to properly contest, file, serve, and email Department 4 by 11:00 a.m. on June 30, 2026 the documents showing proper service or if the other parties do not oppose the motion, they shall email Department 4 by 11:00 a.m. on June 30, 2026 that they do not contest the granting the motion and waive notice and Sentry shall appear at the hearing. If one of these conditions does not occur, then the court DENIES the motion without prejudice.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter counsel for Sentry shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 14

26-UDL-00484 DICKENS LIU, ET AL. VS. MAUNG SOE NAING, ET AL.

DICKENS LIU
MAUNG SOE NAING

ILENE M HOCHSTEIN
PRO SE

MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

Pursuant to an email sent to Department 4 on June 26, 2026, plaintiff has withdrawn the motion for summary judgment. Thus, the matter is off calendar.



POSTED: 3:00 PM